

109	Simma vs. Biosense Webster, Inc. 2023-01342539	Motion for Final Approval of Class/PAGA Settlement Plaintiffs Daraphone Simma and Wendy Santos’s Motion for Final Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/15/2023, Plaintiff Daraphone Simma, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Biosense Webster, Inc. (ROA #2.) On 1/2/2024, Plaintiff Simma filed a first amended complaint (FAC). (ROA #20.) On 2/13/2024, Defendant answered the FAC. (ROA #35.) The operative complaint in this case is the second amended complaint, filed on 11/14/2024 pursuant to the parties’ stipulation and the court’s order, which adds Wendy Santos as a named plaintiff and alleges 10 causes of action, including various Labor Code wage-and-hour violations, unfair business practices, claims for PAGA penalties. (ROA #59.) On 8/7/2025, Plaintiffs filed the Motion for Preliminary Approval of Class Action and PAGA Settlement. (ROA #100.) On 5/7/2026, at the 2nd hearing on the matter, the Court granted the motion. (ROA #142.) On 5/26/2026, the Court entered the order granting the motion. (ROA #148.) On 8/21/2026, Plaintiffs filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #159.) The motion seeks approval of the First Amended Class Action and PAGA Settlement Agreement (“Settlement Agreement”), which provides for the settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (“GSA”) of \$1,800,000. The GSA includes \$40,000 allocated for PAGA penalties. The Class is comprised of 451 Class Members, defined as “all individuals who are or previously were employed by Defendant in California and classified as a non-exempt employee at any time during the Class Period.” The Class Period is 8/15/2019 through 8/31/2025. The settlement also includes 338 Aggrieved Employees, defined as “all individuals who are or previously were employed by Defendant in California and classified as a non-exempt employee at any time during the PAGA Period.” The PAGA Period is 7/25/2022 through 8/31/2025. The settlement administrator, ILYM Group, Inc., reports as follows: - On 6/10/2026, the administrator sent class notices via U.S. Mail to 450 Class Members, including Aggrieved Employees. Later, the administrator also sent a class notice to an additional 451st self-identified class member, whom the parties approved after meeting and conferring. - As of 8/20/2026: - One (1) class notice was returned to the administrator as undeliverable after skip tracing.
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		○ One (1) request for exclusion were received from Benigno Lopez, who will not be bound by the settlement and judgment. ○ Zero (0) objections were received. ○ One (1) workweek dispute was received and resolved. Therefore, 99.8% of the Class is participating in the settlement. The Court concludes that the \$1,800,000 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only. The Court concludes that an attorneys' fee award totaling \$540,000 or 30% of the GSA, constituting a 2.01 multiplier against the anticipated final lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved. The Court further concludes that a Class Representative Service Payment of \$5,000 per named Plaintiff, for a total of \$10,000, is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiffs' contribution to the case. The Court has identified the following minor issue with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment: 1. Counsel's declaration fails to attest as to whether there are any fee-splitting agreements with any other counsel. This issue must be addressed by Class Counsel within five (5) court days of this ruling. Upon resolution of this issue, and assuming no additional issues arise based upon Class Counsel's supplemental declaration, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA: • Attorneys' fees totaling \$540,000.00 awarded to Class Counsel; • Litigation costs totaling \$17,292.53 awarded to Class Counsel; • Settlement administration costs of \$7,500.00 awarded to ILYM Group, Inc.; • Class Representative Service Payments of \$10,000 total, with \$5,000 awarded to Plaintiff Daraphone Simma and \$5,000 awarded to Plaintiff Wendy Santos; and • \$30,000 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties. The Net Settlement Amount payable to all Class Members is \$1,195,207.47, including the \$10,000 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.
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Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
3. In addition to stating the class definition, period, and size, the proposed order and judgment should also include such information for PAGA aggrieved employees.
4. The proposed order and judgment should also state that no class members submitted workweek disputes.
5. The proposed order and judgment must state that one class member submitted a workweek dispute and that the dispute was resolved.
6. The proposed order and judgment should state that the settlement administrator will post a copy of the order and judgment on the website for 180 days.
7. Counsel should not leave blank but should instead propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the Settlement Agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to class members and all others in accordance with the Settlement Agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date.

Final Accounting will be set in accordance with the Court's Order of Final Approval and Judgment after Class Counsel proposes a realistic date. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Plaintiffs are ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.